

Bench

Mr. Justice Bhishmadev Chakrabortty
and

Mr. Justice A.K.M. Zahirul Huq

Criminal Miscellaneous Case No.40195 of 2024

Tarafder Jahangir Alam ...accused-petitioner

-Versus-

The State and anotheropposite parties

Mr. Md. Ruhul Quddus Kazal, Senior
Advocate with Mr. Md. Saiful Islam,
Advocate for the petitioner

Mr. Md. Omar Faruk, Advocate
.... for opposite party 2

Judgment on 03.09.2024.

Bhishmadev Chakrabortty, J:

In this Rule the opposite parties were called upon to show cause as to why the accused-petitioner should not be enlarged on bail in Motijheel Police Station Case No.03 dated 04.04.2023 corresponding to GR No.109 of 2023 under sections ২(শ) এর (৫) and ৪(২) of মানি লন্ডারিং প্রতিরোধ আইন, ২০১২ (সংশোধনী-২০১৫) now pending in the Court of Chief Metropolitan Magistrate, Dhaka and/or such other or further order or orders passed to this Court may seem fit and proper.

Mr. Md. Ruhul Quddus Kazal, learned Senior Advocate for the petitioner taking us through the materials on record submits that the petitioner was the CEO of Fareast Stocks and Bonds Ltd. He is named as accused 2 in the FIR. At the time of his service in the aforesaid Stocks and Bonds Ltd. there was no

allegation against him but allegation has been brought after his retirement. In the FIR although allegation has been brought against him under the aforesaid provision of Ain, 2012 of money laundering but PBI in the investigation found allegation against him of releasing some co-accused, his relatives from the responsibility of the aforesaid Stocks and Bonds Ltd. which comes under the provisions of the Penal Code only. The offence as disclosed do not come within the ambit of the Ain, 2012. He was granted anticipatory bail by this Court and thereafter he voluntarily surrendered to the concerned Court and was sent to jail. He has been in jail from 18.04.2024, *i.e.*, more than 4 months. The petitioner is an old aged person and has been suffering from various ailments. Under the facts and circumstances, he is entitled to the privilege of bail. The Rule, therefore, would be made absolute.

Mr. Md. Omar Faruq, learned Advocate for the Durneeti Daman Commission on the other hand opposes the Rule and submits that the petitioner at the time of his service in the aforesaid Stocks and Bonds Ltd. misused his power and helped the other accused persons to gain money illegally. He showed deposit in the name of the aforesaid Stocks and Bonds Ltd. but the money was not credited to the account and thus committed the offence of money laundering. He finally submits that, if the

accused is released on bail, he will leave this Country. In such a position, the Rule would be discharged.

We have considered the submissions of the learned Advocate for the petitioner and the learned Advocate for the Durneeti Daman Commission. It is found that the petitioner is named as accused 2 in the FIR. He was the CEO of the aforesaid Stocks and Bonds Ltd. Although allegation has been brought against him in the FIR under the provisions of the Ain, 2012 but PBI after investigation found nothing against him of money laundering which comes under the provisions of the aforesaid Ain. It is found in the report of PBI that he waived liability of some of his relatives which was beyond his power as CEO. The above offence as alleged in the report of PBI, if found correct, does not disclose offence of money laundering. Subsequently, Financial Crime Unit of CID found offence against the petitioner under the provisions of the Ain, 2012 that he laundered money and consequently submitted a report against him. It is further found that he obtained anticipatory bail from this Division and surrendered in the concerned Court on 18.04.2024 within time mentioned in the order but the Court sent him to jail. The allegation brought against him, if proved on holding trial he may be sentence thereunder for minimum 4 years. He has been in the jail for more than 4 months without

trial. It is uncertain when the trial would commence and come to an end. In the premises above, we are inclined to release the petitioner on bail in the aforesaid case.

Accordingly, the Rule is made absolute. Accused-petitioner Tarafder Jahangir Alam, Ex-CEO, Fareast Stocks and Bonds Ltd. son of Hashem Ali Tarafder be enlarged on bail in the aforesaid case subject to the satisfaction of the Chief Metropolitan Magistrate, Dhaka.

However, the accused-petitioner shall not leave this Country without permission of the concerned Court.

The concerned Court will be at liberty to cancel the bail of the petitioner on any proven misuse.

Communicate this judgment and order at once.

A.K.M. Zahirul Huq, J:

I agree.